



NEXORAA STUDIO

WEBSITES • LOGOS • BRANDING • AND MORE

NON-DISCLOSURE AGREEMENT

Mutual / Unilateral Confidentiality Agreement

Milan Pandavadara

Founder & CEO, Nexoraa Studio

Let's Build Something Extraordinary.

NON-DISCLOSURE AGREEMENT

(Mutual / Unilateral Confidentiality Agreement)

This Non-Disclosure Agreement ("Agreement") is made and entered into on this ____ day of _____, 20____ ("Effective Date"), by and between:

Nexoraa Studio, a business providing website development, mobile solutions, cloud services, branding, and digital marketing services, having its principal place of business in India, represented by **Milan Pandavadara, Founder & CEO** (hereinafter referred to as the "Disclosing Party" / "Company"),

AND _____, residing at / having its registered office at _____ (hereinafter referred to as the "Receiving Party"),

Each individually referred to as a "Party" and collectively as the "Parties".

1. Purpose

The Parties wish to explore a potential business relationship, project, collaboration, or engagement (the "Purpose"), in connection with which the Disclosing Party may share certain confidential and proprietary information with the Receiving Party. This Agreement governs the use, protection, and disclosure of such information.

2. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" means any and all non-public information, whether oral, written, electronic, visual, or in any other form, disclosed by the Disclosing Party to the Receiving Party, including but not limited to:

- Business plans, strategies, financial information, and pricing models;
- Source code, software, designs, wireframes, UI/UX assets, and technical documentation;
- Client lists, vendor information, and project details;
- Branding materials, logos, marketing strategies, and creative concepts;
- Trade secrets, processes, methodologies, and know-how; and
- Any other information designated as confidential or that reasonably ought to be treated as confidential given the nature of the information and circumstances of disclosure.

3. Exclusions from Confidential Information

Confidential Information shall not include information that:

- Is or becomes publicly available through no fault of the Receiving Party;
- Was already known to the Receiving Party prior to disclosure, without obligation of confidentiality;
- Is independently developed by the Receiving Party without use of or reference to the Confidential Information; or
- Is lawfully obtained from a third party without breach of any confidentiality obligation.

4. Obligations of the Receiving Party

The Receiving Party agrees to:

- Hold all Confidential Information in strict confidence and not disclose it to any third party without prior written consent of the Disclosing Party;
- Use the Confidential Information solely for the Purpose described in this Agreement;
- Take reasonable precautions to protect the confidentiality of the information, at least equal to those used to protect its own confidential information;
- Not copy, reproduce, or reverse-engineer any Confidential Information except as necessary to fulfil the Purpose; and
- Promptly notify the Disclosing Party in writing of any unauthorized use or disclosure of the Confidential Information.

5. Term and Duration

This Agreement shall commence on the Effective Date and remain in effect for a period of ____ (____) **years**, unless terminated earlier by either Party with written notice. The confidentiality obligations set out herein shall survive the termination or expiry of this Agreement for a period of ____ (____) **years** thereafter, or until the Confidential Information no longer qualifies as confidential, whichever is later.

6. Return or Destruction of Materials

Upon termination of this Agreement or upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy all documents, materials, and other tangible manifestations of the Confidential Information, including all copies, and certify such return or destruction in writing, except where retention is required by law.

7. No License or Transfer of Rights

Nothing in this Agreement shall be construed as granting any license, ownership interest, or other right in or to the Confidential Information, except the limited right to use such information for the Purpose stated herein. All intellectual property rights in the Confidential Information shall remain the sole property of the Disclosing Party.

8. No Obligation

Nothing in this Agreement shall obligate either Party to proceed with any transaction, project, or business relationship. Either Party may terminate discussions at any time without liability, except for the obligations set forth in this Agreement.

9. Remedies

The Receiving Party acknowledges that any unauthorized use or disclosure of Confidential Information may cause irreparable harm to the Disclosing Party, for which monetary damages may be inadequate. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief, in addition to any other remedies available at law or in equity.

10. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of _____, India.

11. Miscellaneous

- This Agreement constitutes the entire understanding between the Parties with respect to its subject matter and supersedes all prior agreements, whether written or oral.
- Any amendment to this Agreement must be made in writing and signed by both Parties.
- If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- Neither Party may assign this Agreement without the prior written consent of the other Party.

12. IN WITNESS WHEREOF

The Parties hereto have executed this Non-Disclosure Agreement as of the Effective Date first written above.

For Nexoraa Studio (Disclosing Party)

Signature: Milan Pandavadara
Name: Milan Pandavadara
Designation: Founder & CEO
Date: _____

For Receiving Party

Signature: _____
Name: _____
Designation: _____
Date: _____

